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File No.: EXP202401942
RESOLUTION OF FILE OF PROCEEDINGS
From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS
FIRST: On January 23, 2024, a complaint was filed with registration number REGAGE24e00005245878 before the Spanish Agency for Data Protection against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. with NIF A48265169 (hereinafter, the complained party or BBVA). The reasons for the complaint are as follows:
The complainant states that the complained party has included their personal data in common credit information systems without previously requiring payment in a verifiable manner. After requesting deletion from ***EMPRESA.1, it confirms the existence of debt and its permanence in the file.
Along with the complaint, the following documentation is provided:
- A letter from the complainant addressed to ***EMPRESA.1 dated 12/27/2023 in which the following is stated:
"… Exercising my right of access, rectification, cancellation, and opposition, attaching a copy of my ID, I request that this entity cancel all my data, both personal and economic, from its files, at least provisionally or temporarily, since neither ***EMPRESA.1 nor any of the entities that have included me in their files have notified me, in a verifiable manner, at any time, of such inclusion; moreover, I have not authorized any of the supposedly creditor entities to transfer my data to third parties, neither in the contract nor subsequently, and I have not been informed about the possibility of my inclusion in such systems, neither in the contract nor subsequently…
The debts for which I have been included in their files are contradictory, not accurate, include abusive clauses and penalties, and at the same time, usurious interests, and therefore, are not true; others are time-barred or their inclusion has expired or are paid…"
- A letter from ***EMPRESA.1 addressed to the complained party dated 01/08/2024 in which it is indicated, among other things, the following:
"… We regret that we cannot proceed with the cancellation of the data attached below as it has been confirmed by the reporting entity to the file ***FICHERO.1.

Name: A.A.A.
…
Reporting entity: BBVA
Operation No.: ***REFERENCIA.1
Unpaid amount: 1,679.70
Financed product: Credit policy
…
Date of first default: 08/23/2023
Date of last update: 01/07/2024
Name: A.A.A.
…
Reporting entity: BBVA
Operation No.: ***REFERENCIA.2
Unpaid amount: 2,381.04
Financed product: Credit policy
…

Date of first default: 08/17/2023
Date of last update: 01/07/2024
In relation to this matter, we inform you that we limit ourselves to executing in the file ***FICHERO.1 the instructions transmitted to us by our reporting entity regarding the inclusion or cancellation of the data. Therefore, for any additional clarification or to make the payment of the indicated debt, you should contact that entity."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 02/07/2024 as noted in the acknowledgment of receipt in the file.

On March 21, 2024, a response letter from the complained party addressed to the complainant was received by this Agency, in which it states that they have received the letter sent and that the request is being processed with reference number ***REFERENCIA.3.

THIRD: On April 10, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: On May 6, 2024, a response letter from B.B.B., lawyer, on behalf of the complained party was received by this Agency, in which it states, among other things, the following:

….the Customer Service (hereinafter, the "SAC") communicated in writing to A.A.A. the decision agreed upon by my client regarding the claim submitted to this Agency, as evidenced in Document No. 1 provided. The aforementioned communication was sent by postal mail to the address provided by A.A.A. through the claim submitted to this Agency, namely, ***ADDRESS.1

…this party wishes to state, firstly, that as communicated by the SAC to A.A.A., as of today, BBVA is not transferring its personal data to economic and asset solvency files.

….this party wishes to highlight that A.A.A. was duly informed of the existence of a debt with my client, as well as the consequences of non-payment, through the appropriate sending of the requisite prior demands sent to the address provided for this purpose by A.A.A. (an address that is recorded in the Entity's Database) as well as through the BBVA web application which, as will be seen, A.A.A. accessed on the same day the prior payment demand was sent.

Regarding the debt arising from operation No. ***REFERENCE.4, it was demanded for payment from A.A.A. on September 9, 2021, without said demand being returned for any reason, confirming that it was duly received by A.A.A.

Attached is the letter addressed to the claimed party dated 09/09/2021 informing them of the amount pending payment, among which is one of the debts subject to this file (No. ***REFERENCE.4), with the following amounts:

Principal: 580.23 euros
Late fees: 4 euros
Expenses: 30 euros
Total amount: 614.23

Continues in its writing stating the following:

"That as of the date of this document, it is not recorded that the Notification Letter of Prior Payment Demand with ref. ***REFERENCE.5, generated in ***COMPANY.1, on 09/09/2021 processed in the service provider ***COMPANY.2 (as the successor entity of ***COMPANY.3) dated 09/09/21 and made available to the postal service on 10/09/21; addressed to A.A.A., with the address at ***ADDRESS.1, has been returned for any reason to the designated post office box for that purpose.

The aforementioned demand is attached as Document No. 2.
Regarding the debt arising from operation No. ***REFERENCE.6, my client informed and demanded payment of the same through the BBVA web application. We verify that said payment demand was sent by my client to A.A.A. on August 16, 2023:"

For these purposes, two screenshots of the aforementioned application are attached showing the sending of the "First Payment Demand for Investment" sent at 3:56:55 on 16/08/2023 with attached document: Demand for payment of debt detailing the debt for a loan contract number ***REFERENCE.7, with a principal of 441.83, late fees of 9.10, and a total unpaid amount of 450.93. It refers to the possibility of communicating it to the delinquency files.
The claimed party continues indicating the following:
"In the same way, as determined by the (…) department of BBVA, after conducting an analysis of the accesses to Remote Banking by A.A.A., it is verified that:
An access to Remote Banking has been identified in ***REFERENCE.8 carried out by the Remote Banking user with identifier ***REFERENCE.9, linked to client A.A.A. with ***NIF.1 on August 16, 2023.
The history of communications reflects that on August 16, 2023, at 03:56:55, the sending to the digital mailbox of client A.A.A. with ***NIF.1 occurred, the communication of the first irregular payment demand for investment.
From the above, it is evidenced that my client demanded payment from A.A.A. regarding the debt arising from contract No. ***REFERENCE.6 on August 16, 2023, and that, on that same day, the client accessed online banking, thus having full access to said payment demand."

LEGAL GROUNDS

I
Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.
Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II
Preliminary Issues

In the present case, according to the provisions established in Article 4.1 of the GDPR, there is evidence of the processing of personal data by including the personal data of the claimant in the solvency file.
Furthermore, the respondent carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR:
"data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing.

III

Unfulfilled obligation. Lawfulness of processing

Regarding the lawfulness of the processing of personal data, Article 6.1 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;

d) processing is necessary to protect vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

In the same vein, Article 20 of the LOPDGDD indicates the following:

Article 20. Credit information systems

1. Unless proven otherwise, the processing of personal data relating to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

(...)

c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.

In the present case, with respect to the debt with number ***REFERENCIA.7, the personal data of the claimant would have been included in the solvency file at the request of the respondent without prior notification being evidenced, demanding the existing debt and warning of its possible inclusion in such a file, which means that the processing would lack the required lawfulness as stated in the transcribed article.

On 04/01/2024, the claimant sent a letter to ***EMPRESA.1 requesting the cancellation of their data and stating that the debts were incorrect.

For its part, on 08/01/2024, ***EMPRESA.1 sent a letter addressed to the claimant, indicating that in response to their letter received in their offices on 04/01/2024, they regretted that they could not proceed with the cancellation of the data as it had been confirmed by the reporting entity to the ***FICHERO.1 file.

However, on 02/05/2024, the respondent communicated to the claimant that they were proceeding with the precautionary removal of their personal data from such files, confirming that as of that date, BBVA was not transferring their personal data to the economic and patrimonial solvency files.

Similarly, on 06/05/2024, the respondent sent a letter to this Agency detailing everything mentioned in the background and validating the notifications of both payment demands associated with the two debts included in the solvency files.

However, the notification sent by the web application demanding the debt would not be evidenced, despite BBVA stating in its response letter to the transfer of the complaint that there was access by the claimant.

Therefore, the mandatory payment request prior to inclusion in the delinquent file cannot be considered to have been made.
The respondent sent the debt claim via the web application, confirming in its response letter to the transfer of the complaint that there was access by the claimant but would not have evidenced the notification.
Initially, the described facts could constitute a violation of Article 6.1 of the GDPR, due to the alleged unlawfulness of the processing, as the notification of the inclusion of personal data in solvency files must be evidenced by the respondent, which could provide the following documents:
- a copy of the letter communicating the inclusion;

- Certificate from the external company responsible for the generation, mailing, and availability of the letter at the post office or courier service (traceability), as well as the proof from the post office or courier service confirming receipt of the letter;
- And a certificate from the external company confirming non-return of the letter.
In this case, the responding party, in its response to the information request made by the AEPD, regarding the payment request sent via the website, does not prove receipt of this request, therefore the mandatory payment request prior to inclusion in the debtors' file cannot be considered as having been made.
However, in this case, it would be possible to apply the provisions of Article 65.6 of the LOPDGDD, which states the following:
"After the admission of the procedure, if the data controller or processor demonstrates that they have adopted measures to comply with the applicable regulations, the Spanish Agency for Data Protection may resolve to archive the complaint when specific circumstances advise the adoption of other more moderate solutions or alternatives to corrective action, provided that no prior investigation actions or any of the procedures regulated in this organic law have been initiated."
Based on the aforementioned article, in this case, although the responding party does not prove notification of the payment request and its possible inclusion in the solvency files, it would have proceeded to remove the personal data of the complaining party from the economic and patrimonial solvency files, meaning that it is no longer sharing their personal data as of 02/05/2024, a fact that has already been communicated to the complaining party.
IV
Conclusion
Therefore, based on the information provided in the previous paragraphs, it is considered that measures have been adopted to comply with the regulations that justify the archiving of the complaint.
All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.
Thus, as it has not been possible to prove the infringement according to the aforementioned, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:
FIRST: TO ARCHIVE the present proceedings.
SECOND: TO NOTIFY this resolution to BANCO BILBAO VIZCAYA ARGENTARIA, S.A. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

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